Digerati Experts, LLC

MASTER SERVICES AGREEMENT (MSA)

One master agreement • Services delivered via individual Statements of Work (SOWs)

Prepared For	**«Client Legal Name»**
Prepared By	Digerati Experts, LLC
Effective Date	**«Effective Date»**
Version	v2026.4 (January 02, 2026)
Primary Contact (Client)	**«Client Contact Name / Title / Email / Phone»**
Primary Contact (Digerati)	admin@digerati-experts.com | 325-480-9870
Notices Address (Client)	**«Client Notices Address»**
Notices Address (Digerati)	**«Digerati Notices Address»**

1. Parties

This Master Services Agreement ("Agreement" or "MSA") is entered into by and between Digerati Experts, LLC ("Digerati"), an Arizona limited liability company, and «Client Legal Name» ("Client").

2. Order of Precedence

If there is a conflict among documents, the following order controls (highest to lowest):

1. This MSA (including any Exhibits incorporated into the MSA).
2. The applicable SOW (including SOW-specific attachments).
3. Policies attached as Exhibits or expressly incorporated by reference in an SOW, to the extent they do not conflict with the MSA or SOW.
4. Other documents exchanged between the parties that are not expressly incorporated.

3. Statements of Work

Services are provided only as described in an executed SOW. Each SOW will identify the service(s), term, fees, assumptions, exclusions, and acceptance criteria. SOWs may be added over time. An SOW may include an Order Form that sets quantities and fees. For commercial terms (pricing, quantities, totals), the Order Form controls; for scope, the SOW controls.

4. Client Obligations

- Provide timely administrative access, documentation, and reasonable cooperation.
- Maintain current contact information and designate an authorized decision-maker for approvals.
- Coordinate with Digerati before purchasing or deploying new technology that affects covered environments.
- Follow Digerati's written standards and recommendations for systems within scope, or execute an Exception Form if declining a recommendation.

5. Support Model, TechTime, and Out-of-Scope Work

Support for Digerati-managed systems is included as described in the applicable SOW and Exhibit A (Support & SLA). Work outside the SOW scope may consume TechTime or be billed separately, as defined in Exhibit B (TechTime Terms).

6. Fees, Invoicing, and Payment

Fees and payment terms are defined in each SOW. Unless otherwise stated in an SOW, invoices are due Net «X» days. Late payments may incur a monthly finance charge and/or service suspension after written notice. If incorporated, Exhibit C (Invoice Terms & Conditions) applies.

7. Term and Termination

This MSA begins on the Effective Date and continues until terminated. Either party may terminate this MSA with 30 days' written notice. SOWs may define minimum terms, renewal terms, and/or early termination fees.

Either party may terminate for cause if the other party materially breaches and does not cure within ten (10) days after written notice.

8. Confidentiality

Each party agrees to protect the other's Confidential Information using at least reasonable care and not to disclose it except to employees/contractors with a need-to-know and confidentiality obligations. Confidentiality obligations survive for five (5) years after termination.

9. Data Protection and Security

Data protection obligations and any industry-specific requirements must be documented in the relevant SOW or an executed Data Processing Addendum (DPA). Unless Client executes a Security and/or Compliance SOW, Digerati does not warrant or certify Client's compliance status and is not responsible for security or compliance outcomes beyond the scope of executed SOW(s).

10. Intellectual Property

Upon full payment, Client owns deliverables specifically created for Client under an SOW, excluding Digerati pre-existing tools, templates, or methods. Digerati retains ownership of its pre-existing intellectual property and grants Client a non-exclusive license to use it as necessary to receive the Services.

11. Warranty Disclaimer

Digerati will perform Services in a professional and workmanlike manner. Except as expressly stated in an SOW, Digerati disclaims all other warranties, express or implied.

12. Limitation of Liability

Except for gross negligence, willful misconduct, or breach of confidentiality/data protection obligations, each party's total liability under this MSA will not exceed the fees paid or payable under the applicable SOW during the twelve (12) months preceding the event giving rise to the claim. Neither party will be liable for indirect, incidental, special, punitive, or consequential damages.

13. Dispute Resolution; Governing Law

Disputes will be submitted first to mediation in Phoenix, Arizona. If not resolved, disputes will be resolved by binding arbitration under AAA rules in Arizona. This MSA is governed by Arizona law.

14. Force Majeure

Neither party shall be liable for delays or failures in performance due to circumstances beyond its reasonable control, including natural disasters, pandemics, labor disputes, or third-party interruptions.

15. Notices

Notices must be in writing and delivered by email and one additional method (hand delivery, courier, or certified mail) to the Notices Addresses listed on page 1 (or as updated by written notice).

Counterparts; Electronic Signatures. This Agreement and any Statements of Work may be executed in counterparts, each of which is deemed an original, and all of which together constitute one instrument. The Parties agree to conduct business electronically. Signatures delivered by electronic means (including PDF, e-signature platforms, or other electronic signature methods) are binding and effective to the fullest extent permitted by applicable law.

16. Miscellaneous

Independent Contractor. Digerati Experts is an independent contractor and not an employee, agent, partner, or joint venturer of Client.

Assignment. Neither party may assign this Agreement without the other party's written consent, except to an affiliate or in connection with a merger, acquisition, or sale of substantially all assets, provided the assignee agrees in writing to be bound.

Severability. If any provision of this Agreement is held unenforceable, the remaining provisions will remain in full force and effect, and the parties will replace the unenforceable provision with an enforceable provision that most closely reflects the original intent.

Waiver. No waiver is effective unless in writing and signed by the waiving party. A waiver of any breach does not waive any other breach.

Entire Agreement; Amendments. This Agreement (including all Exhibits and executed SOWs) constitutes the entire agreement between the parties and supersedes all prior or contemporaneous understandings, proposals, or agreements, whether written or oral. Digerati Experts may propose additional services or modules from time to time; Client will not be charged unless Client approves in writing (including by executing an Order Form and/or SOW). Any amendment must be in writing and signed by both parties.

No Third-Party Beneficiaries. This Agreement is for the benefit of the parties only and does not create any third-party beneficiary rights.

Survival. Sections that by their nature should survive termination will survive, including Confidentiality, IP, Warranty Disclaimer, Limitation of Liability, and Dispute Resolution.

Compliance with Laws. Each party will comply with applicable federal, state, and local laws in connection with performance under this Agreement. Client is responsible for determining any legal or regulatory requirements applicable to its business and for ensuring its own compliance unless a signed SOW expressly states otherwise.

Attorneys' Fees. In any action or proceeding arising out of this Agreement, the prevailing party may recover its reasonable attorneys' fees and costs, to the extent permitted by law.

Signatures

CLIENT	DIGERATI EXPERTS, LLC
Signature: _____	**Signature:** _____
Printed Name: «Client Signatory Name»	**Printed Name: Joseph Petro**
Title: «Client Signatory Title»	**Title: Owner**
Date: «Date»	**Date: «Date»**

Exhibit A — Support & SLA (Baseline)

This exhibit defines DE support tiers, incident priorities, and service level targets. Enhanced SLAs apply only if selected on the Order Form.

A.1 Support Hours (Default)

Support is provided during «Support Hours / Time Zone» for covered services. After-hours support may be available by request and is billed per the applicable SOW/Order Form unless otherwise included.

A.2 Incident Priority Definitions

A.3 Service Level Targets

Targets below are measured from ticket creation in the DE ticketing portal (or other approved intake channel). Third-party/vendor delays and Client dependencies may affect outcomes.

Resolution times are best-effort unless an SOW explicitly states guaranteed resolution. DE will provide status updates at a cadence appropriate to severity.

A.3.1 Service Credits (Remedy)

If DE fails to meet the applicable Response targets for covered services (as selected on the Order Form) due solely to DE (excluding Client dependencies, third-party/vendor delays, force majeure, and emergencies), Client may request a service credit as the sole and exclusive remedy for that SLA miss.

Service Credit Schedule (per calendar month):

- Missed P1 Response: 5% of the Monthly Recurring Charges (MRC) for the affected service, per missed P1, capped at 15% MRC per month.
- Missed P2 Response: 2% of the MRC for the affected service, per missed P2, capped at 10% MRC per month.
- P3/P4: No service credits (best-effort targets).

Credits must be requested in writing within thirty (30) days after the end of the month in which the miss occurred. Credits apply to future invoices only and will not be paid as cash.

A.4 Support Tiers and Escalation

- Tier 1 (Service Desk): Intake, triage, basic troubleshooting, and ticket routing.
- Tier 2 (Systems/Network): Advanced troubleshooting, system configuration, and remediation tasks.
- Tier 3 (Engineering / Security): Deep technical issues, complex remediation, root-cause analysis, and vendor escalation.

Escalation is based on severity, required expertise, and Client impact.

SLA Tier	P1 Response	P2 Response	P3 Response	P4 Response
Baseline (Default)	«P1 Response	«P2 Response	«P3 Response	«P4 Response

	Target»	Target»	Target»	Target»
Enterprise (Optional)	«Ent P1»	«Ent P2»	«Ent P3»	«Ent P4»
High Availability (Optional)	«HA P1»	«HA P2»	«HA P3»	«HA P4»

Priority	**Definition (Examples)**
P1 — Critical Outage	Business-critical service down; widespread impact; active security incident affecting operations.
P2 — High	Major degradation; multiple users impacted; significant risk if not addressed quickly.
P3 — Medium	Limited impact; single user or non-critical system; workaround available.
P4 — Low / Request	General requests, minor issues, changes, advisory, how-to questions.

Tier	Helpdesk Availability	Notes
Essentials	Business Hours	Monitoring-focused; support for DE-managed services as defined in SOW.
Office	Business Hours	Business-hours helpdesk for covered services.
Business	Business Hours	Unlimited helpdesk (business hours) for covered services.
Enterprise	24/7	24/7 support; security incident response handled 24/7. General helpdesk follows SOW unless stated otherwise.

Exhibit B — TechTime Terms

TechTime is a bank of hours for work outside the managed scope (third-party apps, legacy systems, special projects). DE-managed support for in-scope services remains unlimited.

Tier	Per User / Month	Per Company / Month	Notes
Essentials	—	30 minutes	Flat allocation for micro-sites
Office	10 minutes	30 minutes	Pooled monthly
Business	20 minutes	45 minutes	Pooled monthly

Enterprise	2 hours	3 hours	Pooled monthly

Banking & rollover rules:

- Rollover: quarterly (unused hours roll forward).
- Max bank: 3× the monthly TechTime allocation.
- Expiration: TechTime expires after 6 months if untouched.
- Transferable: TechTime may be transferred between users within the same Client account.
- After-hours TechTime requests may be billed at a higher multiplier if stated in an SOW.

Bonus TechTime (if offered and stated in the applicable SOW): onboarding (+2 hrs), annual contract (+10%/mo), referral (+2 hrs), tier upgrade (+1 hr).

Exhibit C — Invoice Terms & Conditions (Optional)

If incorporated by an SOW or attached invoice, the following Invoice Terms & Conditions apply. If a conflict exists, the applicable SOW controls.

1. Scope of Services — This invoice covers the specific services or products detailed within it. Any additional services requested beyond the scope outlined will require a separate agreement and may incur additional charges.

2. Payment Terms — Payment is due within «X» days from the invoice date unless otherwise agreed upon in an MSA or SOW. Late payments may incur a «X»% late fee per month on the outstanding balance. Payment methods: «ACH / Wire / Credit Card / Other». If no late charge or interest rate is stated in writing, any interest assessed will accrue at the default statutory rate.

3. Minimum Service Fee — A minimum service fee of $1,200 applies to all engagements unless otherwise specified in an SOW or agreement.

4. Service Engagements — Work is conducted as specified in the MSA and SOW, which define the scope, exclusions, and associated risks. Service agreements may include term-based options such as 30-Day Money-Back Guarantee, 90-Day Month-to-Month, or 3-Year Terms (as specified in the SOW).

5. Break-Fix Services — Break-fix services are provided on a per-month basis and may incur higher costs than Managed Services. These services may be billed as blocked time and may be non-refundable if unused, as specified in the SOW.

6. Managed Services — Managed Services are billed monthly and based on the selected tier. Best practices for security and compliance are applied; however, certification of compliance is not guaranteed unless a compliance module is specifically purchased and documented in an SOW.

7. Tech Points / Rewards — If offered in an SOW, Clients may earn credits (e.g., TechTime bonuses) for adopting recommended solutions and meeting stated criteria.

8. Support Guidelines — Support is provided for products and services sold or managed by Digerati within scope. User education or third-party products not sold/managed may incur additional charges.

9. Service Limitations — No guarantees are provided regarding resolution time unless explicitly outlined in an SOW. Services may be limited by third-party dependencies, client-provided resources, or network access.

10. Warranty Disclaimer — No warranties, express or implied, beyond the scope of the SOW/MSA.

11. Liability — Digerati shall not be liable for damages or losses exceeding the total value of the invoice. Indirect, incidental, or consequential damages are excluded.

12. Dispute Resolution — Disputes will be resolved under Arizona law. Mediation or arbitration may be pursued before litigation, as outlined in the MSA.

13. Cancellation and Refunds — Cancellations must be made in writing. Refunds are subject to the SOW or agreement. No refunds for completed work or unused services where the SOW states non-refundable.

14. Confidentiality — Both parties agree to maintain confidentiality as outlined in the MSA.

15. Force Majeure — Digerati shall not be liable for delays due to circumstances beyond control.

16. Amendments — Digerati reserves the right to update invoice terms for future invoices with notice of significant changes.

Exhibit D — Security Recommendation Exception Form (Optional)

This form is used when Client declines a written recommendation or required control that materially impacts security, backup, disaster recovery, compliance, or supportability.

Client Legal Name	**«Client Legal Name»**
Date of Exception	**«Date»**
System / Scope	**«System / Location / App»**
Recommendation Declined	**«Describe the recommendation/control»**
Reason for Decline	**«Client rationale»**
Acknowledged Risks	**«Describe expected impact (e.g., slower recovery, increased breach risk, compliance gaps)»**
Re-Review Date (QBR/TBR)	**«Date»**

Acknowledgement: By signing, Client confirms it understands and accepts the increased risk created by declining the recommendation.

CLIENT (ACKNOWLEDGEMENT)	DIGERATI EXPERTS, LLC (RECOMMENDATION)
Signature: _____	**Signature:** _____
Printed Name: «Client Signatory Name»	**Printed Name: Joseph Petro**
Title: «Client Signatory Title»	**Title: Owner**
Date: «Date»	**Date: «Date»**

Exhibit E — Minimum Standards, Exclusions, and Expenses

E.1 Minimum Service Standards (Eligibility)

To deliver reliable support and security outcomes, Client agrees to maintain these minimum standards or authorize remediation work (quoted separately) to achieve them:

- Supported operating systems and software versions (no end-of-life systems in production unless explicitly accepted in writing).
- Licensed and legally acquired software; valid admin access and documentation.
- Backups for critical systems and data (on-site and/or off-site as appropriate), with periodic restore testing.
- Business-grade firewall/router and secure Wi-Fi encryption; segmentation where required.

- Endpoint protection and security controls appropriate to the environment (as defined in the applicable SOW).

If Client declines remediation required to meet minimum standards, DE may limit support obligations to best-effort advisory and may require an exception acknowledgement (see Exhibit D).

E.2 Excluded Services (Unless Expressly Included in an SOW/Order Form)

Unless an SOW explicitly states otherwise, the following are excluded and will be quoted or billed separately:

- Hardware, parts, accessories, shipping, and disposal fees.
- Software licensing, renewals, upgrades, subscriptions, and third-party vendor costs.
- Custom software development, programming, or integrations beyond the defined scope.
- User training, tutorials, and classroom-style education beyond brief best-effort guidance.
- After-hours, weekend, and holiday work unless included/approved on the Order Form or SOW.
- Travel outside the normal service area (see E.3).
- Projects, adds/moves/changes, and remediation required to meet minimum standards.

E.3 Expenses, Travel, and Per Diem

If on-site work is requested outside DE's normal service area («Service Area Radius» miles from «DE Office Location»), Client agrees to reimburse reasonable travel expenses at cost (airfare, lodging, rental car/ride share) plus a per-diem of «Per Diem Rate» per day, unless otherwise stated in the applicable SOW/Order Form.

Exhibit F — Onboarding, Transition, and Acceptance

F.1 Standard Onboarding Phases

Unless the applicable SOW states otherwise, onboarding follows these phases:

- Provisioning & Discovery: Access collection, asset inventory, baseline configuration, and tool deployment.
- Training & Handoff: Admin and end-user enablement for systems within scope; documentation updates.
- Go-Live & Stabilization: Final cutover (if applicable), verification checks, and stabilization window.

F.2 Phase Sign-Off and Acceptance

Client will provide written acceptance for each phase when requested. If Client does not provide written objections within «Acceptance Window» business days after delivery of a phase deliverable, the phase will be deemed accepted.

F.3 Transition / Offboarding

Upon termination and subject to payment of all outstanding balances, DE will provide reasonable transition assistance as described in the applicable SOW (or at standard rates if not included). Client remains responsible for third-party vendor cancellations and data export limitations.

Exhibit G — Client Assurance & Guarantees (Optional)

The guarantees below apply only if selected on the Order Form. Unless expressly stated otherwise, the remedies below are service credits applied to future invoices and are the Client's sole and exclusive remedy for a guarantee event. Credits do not apply where delays or outcomes are driven by Client dependencies, third-party vendors/carriers, force majeure, emergencies, or services outside scope.

1. 30-Day Money-Back Guarantee

- Applies to new Managed Services clients for the first thirty (30) days after the Service Start Date. Upon written request, DE will refund Managed Services fees paid for that period, less non-refundable pass-through costs (e.g., third-party licenses, carrier fees), hardware, project fees, and work performed outside the managed scope.

2. On-Site On-Time Guarantee

- For scheduled on-site appointments confirmed in writing, if DE arrives more than sixty (60) minutes late without prior notice, Client may request a credit equal to one (1) hour of on-site labor at the applicable rate (or 2% of MRC if included in a flat-rate plan).

3. Never Leave a Voicemail Guarantee

- For Covered Support Requests, DE will respond using live contact (call-back, SMS, or email) and will not treat a voicemail as the final response. If Client receives no human response within the applicable SLA Response window, Client may request a 2% MRC credit for that ticket (cap 10%/month).

4. Meet Our Service Level Agreement Guarantee

- If DE misses the applicable Response targets in Exhibit A for Covered Support Requests due solely to DE, the Service Credit Schedule in Exhibit A applies.

5. Make It Right Guarantee

- If DE's error causes a service issue within scope, DE will re-perform the affected work at no charge within a commercially reasonable time. If DE cannot reasonably remediate, Client may request a credit up to 10% of the affected service's MRC for that month.

6. Privacy Guarantee

- DE will safeguard Client Confidential Information and follow the security controls and handling requirements described in this MSA and any applicable SOW. If DE materially breaches these obligations, DE will promptly investigate and take corrective action; remedies remain subject to Section 12 (Limitation of Liability).

7. 100% Satisfaction Guarantee

- If Client is not satisfied with Covered Services, DE will work in good faith to correct the issue within scope. If unresolved after reasonable remediation efforts, Client may request a service credit up to 10% of MRC for the affected service for that month.

8. Try Us Before You Commit Guarantee

- If selected, Client may elect an initial ninety (90) day month-to-month term for Managed Services. During this period, either party may terminate with ten (10) days' notice; termination fees do not apply, but pass-through costs and non-refundable items remain payable.

9. We'll Pay Out Your Existing Managed Services Contract Guarantee

- If selected and approved on the Order Form, DE will provide an invoice credit (not cash) toward DE Managed Services fees up to the approved cap, to offset documented early-termination fees owed to Client's prior managed services provider. Client must provide a copy of the prior contract and the final invoice/termination charge.